of establishing eligibility of officers of such corps for promotion: medical, dental, sanitary engineer, scientist, nurse, pharmacist, veterinarian, sanitarian, dietitian, and therapist. (Sec. 5 (i), Pub. Law 425, 80th Cong., 62 Stat. 41)

§ 21.111 *Prescription of numbers in grade.* The following maximum number of officers are authorized to be on active duty in the Regular Corps in each of the grades from the junior assistant grade to the director grade, inclusive, during the fiscal year beginning July 1, 1948, and ending June 30, 1949:

| | |
|---|---|
| Director Grade | 192 |
| Senior Grade | 429 |
| Full Grade | 385 |
| Senior Assistant Grade | 331 |
| Assistant Grade | 73 |
| Junior Assistant Grade | 46 |

(Sec. 4 (b), Pub. Law 425, 80th Cong., 62 Stat. 39)

4. Subpart J is amended by adding at the end thereof the following undesignated centerhead and sections:

*Restricted Grade Retirements*

AUTHORITY: §§ 21.194 to 21.197, inclusive, issued under sec. 7 (d), Pub. Law 425, 80th Cong., 62 Stat. 46.

§ 21.194 *Voluntary retirement; restricted grades.* An officer of the Regular Corps shall, upon his application and subject to the approval of the Surgeon General, be retired pursuant to section 211 (g) of the act on or after such date as he becomes eligible for retirement pursuant to said sections: *Provided,* That he has not been found qualified for a permanent promotion prior to the date upon which the Surgeon General approves his application for retirement.

§ 21.195 *Referral of records to retirement boards.* (a) If an officer does not request in writing within one month subsequent to the date on which he becomes eligible for retirement pursuant to section 211 (g) of the act that he be retired within six months after such date, the Surgeon General shall immediately after the expiration of such month refer his record, including the record of his physical condition, to a retirement board appointed pursuant to § 21.185 which board shall review his record to determine his qualifications for continued active service. In considering each such record the retirement board shall have the powers and duties prescribed in § 21.187.

(b) If the Surgeon General disapproves the application of an officer for retirement pursuant to § 21.194, he shall, not later than one year from the date on which the officer first applied for retirement, submit the officer's record to a retirement board for review as prescribed in paragraph (a) of this section: *Provided,* That the officer is still eligible for retirement at such time.

§ 21.196 *Subsequent review of records.* The records of officers who remain eligible for retirement pursuant to section 211 (g) of the act shall be subject to such additional reviews as are prescribed in §§ 21.188 and 21.189.

§ 21.197 *Action by the Surgeon General and the Administrator.* If a retirement board finds that an officer who is eligible for retirement pursuant to section 211 (g) of the act should be retired and if such finding is approved by the Surgeon General and the Administrator, the officer concerned shall be retired and his retirement shall be effectuated as prescribed in § 21.173.

5. Subpart R, as approved by the Acting Federal Security Administrator, June 24, 1948, (13 F. R. 3607), is hereby revoked.

6. These amendments shall be effective on the date of their publication in the FEDERAL REGISTER.

NOTE: These amendments are amendments to Part 21, Title 42, Code of Federal Regulations, as amended by Executive Order 9993, *supra.*

Dated: August 19, 1948.

[SEAL] LEONARD A. SCHEELE,
*Surgeon General.*

Approved: August 20, 1948.

J. DONALD KINGSLEY,
*Acting Federal Security Administrator.*

[F. R. Doc. 48-7677; Filed, Aug. 31, 1948; 1:49 a. m.]

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PART 21—COMMISSIONED OFFICERS

PART 22—PERSONNEL OTHER THAN COMMISSIONED OFFICERS

CROSS REFERENCE: For regulations relating to commissioned officers and employees of the Public Health Service, constituting Subparts A through N, inclusive, of Part 21, and §§ 22.1 and 22.2 of Part 22, see Executive Order 9993, *supra.* For certain additions to Part 21, see F. R. Doc. 48-7677 under this chapter, *infra.*

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PART 71—FOREIGN QUARANTINE

INSECTICIDE AND DISINSECTIZATION

CROSS REFERENCE: For an amendment to § 71.513, see Title 8, Chapter I, Part 116, *supra.*

# TITLE 43—PUBLIC LANDS: INTERIOR

## Chapter I—Bureau of Land Management

[Order No. 334]

PART 50—ORGANIZATION AND PROCEDURE

DELEGATIONS TO THE MANAGERS

AUGUST 24, 1948.

The last paragraph of § 50.503 contained in Order 325 of August 6, 1948, is amended to read as follows:

The managers of the above specified offices are also authorized to approve all bonds filed in connection with noncompetitive oil and gas leases, including collective bonds, and, with respect to nonproducing, noncompetitive leases, to approve assignments thereof or royalty interests therein, of operating agreements and assignments of such agreements, and of subleases.

(R. S. 161, 453, 2478; 5 U. S. C. 22, 43 U. S. C. 2, 1201, 43 CFR 4.275)

MARION CLAWSON,
*Director.*

[F. R. Doc. 48-7849; Filed, Sept. 1, 1948; 8:48 a. m.]

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### Appendix—Public Land Orders

[Public Land Order 518]

CALIFORNIA

REVOKING IN PART EXECUTIVE ORDER CREATING PUBLIC WATER RESERVE NO. 114

By virtue of the authority contained in section 1 of the act of June 25, 1910 (36 Stat. 847, 43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

The Executive order of February 23, 1928, creating Public Water Reserve No. 114, is hereby revoked as to the following described land:

SAN BERNARDINO MERIDIAN

T. 8 S., R. 11 E., 20, SW¼SE¼.

The area described contains 40 acres.

C. GIRARD DAVIDSON,
*Assistant Secretary of the Interior.*

AUGUST 24, 1948.

[F. R. Doc. 48-7850; Filed, Sept. 1, 1948; 8:48 a. m.]